REPORTABLE (41)

(1) LONGINA RITA MAKUMBE (2) EUNICE MAKUMBE (3) MUNYARADZI DARLINGTON MAKUMBE (4) HAKURERWI ELIAS MAKUMBE FAMILY TRUST (5) THE HAKURERWI RITA AND HENRY MAKUMBE FAMILY TRUST
v
(1) THE REGISTRAR OF THE SUPREME COURT N.O (2) KENNEDY MAKUMBE (3) TITUS MAKUMBE AND (4) REGISTRAR OF DEEDS

THE SUPREME COURT OF ZIMBABWE
HARARE: 5 MAY 2026 & 14 JULY 2026

T. Sibanda with *N. Mushangwe,* for the applicants

M. V. Mwase, for the second and third respondents

IN CHAMBERS

CHITAKUNYE JA: This is an opposed chamber application for review brought in terms of r 62 (2) as read with r 81 of the Supreme Court Rules, 2025. The applicants seek a review of the first respondent's decision disallowing a claim for advocate's fees in the sum of USD5 000.00.

FACTUAL BACKGROUND

On 20 November 2025, a judgment was handed down under case number HCH 841/25 against the second and third respondents in the High Court. Aggrieved by that decision, the second and third respondents sought to appeal against that judgment. They were, however, out of time hence they filed a chamber application for condonation and extension of time within which to note an appeal under case number SC 73/26. The chamber application was struck off the roll with costs on a higher scale on 27 February 2026. The applicants were represented by an advocate in that hearing.

The applicants sought to be paid their costs as per the court order but the parties failed to agree on the bill of costs presented by the applicants. They thus approached the first respondent for taxation of the bill of costs in terms of r 62 (1) of the Supreme Court Rules, 2025. The matter was set down for taxation before the first respondent. During taxation, the first respondent disallowed a disbursement in the sum of USD5 000.00 that had been claimed by the applicants as having been paid to the advocate who appeared for them in the Supreme Court. The basis for that disallowance was that there was insufficient proof of payment of the advocate's fees. It is against this background that the applicants filed the present application on the grounds that:

1. The first respondent erred during taxation of fees on 1 April 2026 by failing to find that a total of USD5 000.00 in respect of fees paid to the advocate was reasonable and by proceeding to disallow the same also on the further basis that the invoice and acknowledgement of receipt did not appear authentic.
2. The decision was incorrect in that the disallowed fees disbursed to an advocate are not taxable on the basis of hourly charges but are governed by reasonable attendances and charges based on a fee for the day. The decision to reject the advocate's invoice and acknowledgment of receipt document signed by the advocate's messenger had no legal or factual basis.
3. The first respondent's decision on this aspect was therefore wholly irrational and unsupported by correct legal principles.

The relief sought was couched as follows:

IT IS ORDERED THAT:

1. The application for the review of part of the first respondent's decision in terms of r 62 (2) of the Supreme Court Rules, 2025 be and is hereby granted.

2. The decision of the first respondent in disregarding a disbursement of USD5 000 being fees credited to Advocate Taona Sibanda for consultation with counsel, analysis of brief, conferences with counsel and first – fifth applicants, court preparations, attendance and argument on 27 February 2026 be and is hereby set aside.
3. The disbursement to Advocate Taona Sibanda in the sum of USD5 000 as more fully appears from pp 3-4 of the taxed bill of costs be and is hereby allowed.
4. Costs of suit.

In seeking the above relief, the applicants averred that the first respondent erred in disallowing the USD 5 000.00 disbursed to the advocate.

The submissions by Mr *Sibanda*, for the applicants, were essentially that the first respondent should have accepted the documents tendered as sufficient proof of payment. In his view, the acceptance of the documents was adequate proof that the sum claimed therein had been disbursed and was reasonable.

Mr *Mwase*, for the second and third respondents, on the other hand, submitted that the first respondent was correct in disallowing the disbursement on the basis that the evidence tendered was insufficient to prove that the advocate had indeed been paid the stated amount.

The first respondent in her report indicated that she found the proof of disbursement supplied by the applicants unsatisfactory. The proof comprised a pro-forma invoice, which the applicants constantly referred to as 'the invoice', and an acknowledgment of receipt issued by the applicants' law firm. That acknowledgment of receipt was not from

the advocate. It was thus her finding that the documents were insufficient to prove that a sum of USD5000.00 was paid to the advocate that led to the disallowance of the item.

It is this decision, and the basis thereof, that the applicants seek to have overturned and an order granting the claim for disbursement in the sum of USD 5 000.00 issued.

THE ISSUE FOR DETERMINATION

The issue for determination is whether or not the first respondent erred in disallowing the sum of USD5 000.00 claimed as advocate's fee.

THE LAW

It is trite that a taxing officer's determination may be subjected to review and, in appropriate circumstances, may be overturned. As the taxing officer's decision to allow or not allow a particular claim is premised on the exercise of discretion, such exercise of discretion is not to be lightly interfered with.

In this regard it is pertinent to firstly consider the applicable legal provisions. Rule 62 of the Supreme Court Rules, 2025 provides, *inter alia*, that: -

> "62. (1) Where costs are allowed, they shall be taxed by a registrar and legal practitioners' fees shall be charged and taxed in accordance with the relevant provisions of the tariff for the time being used by the High Court of Zimbabwe.
>
> (2) Any party aggrieved by the taxation shall give notice of review to the registrar and to the opposite party within 15 days of the taxation, setting out his or her grounds of objection."

During taxation the taxing officer is essentially guided by the provisions of r 72 of the High Court Rules, 2021 which provides, *inter alia* that:

> "(3) With a view to affording the party who has been awarded an order for costs reasonably incurred by him or her in relation to his or her claim or defence and to ensure that all costs shall be borne by the party against whom such order has been

awarded, the taxing officer shall on every taxation allow all such costs, charges and expenses as appear to him or her to have been necessary or proper for the attainment of justice or for defending the rights of the party, but save as against the party who incurred the same, no costs shall be allowed which appear to the taxing officer to have been incurred or increased through over-caution, negligence or mistake, or payment of a special fee to another legal practitioner, or special charges and expenses to witnesses or other persons or by other unusual expenses.

(4) ….

(5) In the taxation of costs as between party and party in respect of work done in connection with judicial proceedings, a taxing officer shall be guided as far as possible by the tariff of legal practitioners' fees specified in the High Court (Fees and Allowance) Rules:
…

(8) In taxing costs under this rule, a taxing officer shall-
(a) allow disbursements made when they are reasonable, and reasonably incurred; …
….

(22) In any matter another legal practitioner is employed, the reasonable fee consequent upon such employment:
Provided that he or she-

(a) may disallow the fee of another in unopposed matters and in matters in which a legal practitioner has not appeared on the other side, and in matters in which no award of costs has been made by the court; and

(b) shall give due consideration to-
(i) the volume of evidence (oral or written) dealt with by another legal practitioner or which he or she could reasonably have expected to be called upon to deal with;
(ii) the complexity of the facts or the law relevant to the case;
(iii) the presence or absence of scientific or technical problems, and their difficulty if they were present;
(iv) any difficulties or obscurities in the relevant legal principles or in their application to the facts of the case;
(v) the importance of the matter in issue, in so far as that importance may have added to the burden of responsibility undertaken by the legal practitioner." (Underlining for emphasis)

It is clear from the above provisions that the overarching consideration is the reasonableness of the amounts claimed in respect of each claimed item. Hence the reference to the criteria that the costs or disbursements claimed must appear to the taxing officer to have been necessary or proper, reasonably incurred and reasonable.

In *Mahomed* v *Bredenkamp & Ors* 2020 (2) ZLR 27 (S) at 30 C- E this Court, whilst relating to r 307 of the High Court Rules, 1971, which is a precursor to r 72 (3) of the High Court Rules, 2021 and couched in identical words, aptly stated that:

> "In terms of the above rule, a taxing officer is expected to conduct an enquiry into the reasonableness of fees and disbursements that a successful litigant claim *(sic)* from his adversary. To discharge that obligation, the rule confers upon a taxing officer a discretion to allow costs, charges and expenses incurred by a party which appear to him to have been necessary or proper for the attainment of justice or defending the rights of any party. Such taxation is made in consonance with an existing order of costs granted by a court which specifies the party to be indemnified and the extent of such indemnification in general terms. Once a bill of costs is taxed, a party obtains the right to execute for costs.
>
> It follows that in exercising the discretion conferred upon him, a taxing officer may not allow the costs which have been incurred or increased through over-caution, negligence or mistake, or by payment of a special fee to another legal practitioner, or special charges and expenses to witnesses or other persons or by other unusual expenses. Therefore, a taxing officer can only allow *bona fide* and necessary costs on every taxation."

In the exercise of his or her discretion a taxing officer may allow or disallow the fee or disbursement claimed or tax down the claimed amount. In this regard the taxing officer's powers are regulated by law and may not be exercised outside the parameters stipulated by the relevant laws.

It is trite that once the judgement debtor, at taxation, establishes a *prima facie* basis for objecting to an item on the bill of costs, the *onus* shifts to the judgement creditor to establish the reasonableness and propriety of each item that it claims. In the absence of clear guidance on fees by members of the *de factor* bar, counsel maybe called upon to justify the fee claimed. Proof of payment of a given fee to counsel should not be taken as the alpha and omega of the enquiry on the reasonableness and propriety of the fee claimed without subjecting the same to the criteria set out in r 72.

The grounds under which a taxed bill of costs may be challenged on review are limited. In *Cone Textiles Limited* v *C Pettigrew (Private) Limited* & *Anor* 1984 (1) ZLR 274 (*S*) at 275F, the circumstances under which a court may interfere with a taxing officer's determination were stated as follows:

> "The question as to when a court is entitled to interfere with a Taxing Master's determination of fees has been the subject of numerous decisions since the beginning of this century. They fall into two main categories. Firstly, that a court will only apply common law grounds for interference on review. Secondly, that if the court is 'clearly' or 'distinctly' of the opinion that the taxing master was wrong it is the duty of the court to reverse or correct it…"

And further at 278G – 279B:

> "In my view, the correct position is, therefore, that the court has power to interfere with or alter a Taxing Master's ruling on two grounds. Firstly, on the application of the common law rights on review which involve a finding that he was grossly unreasonable or erred on a point of principle or law. In such a situation the court would be at large and entitled to substitute its opinion for that of the Taxing Master. It should not be overlooked that even when such grounds for interference exist it need not follow that the Taxing Master's decision must necessarily be set aside or altered. He may have arrived at the correct decision for a wrong or even improper reason.
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> Secondly, regardless of the absence of any common law ground for interference the court has a duty to interfere if satisfied that the Taxing Master was clearly wrong in regard to some item. In such a case the court will substitute its own opinion for that of the Taxing Master even if it is a matter involving degree. It is emphasized, however, that the court must be satisfied that the Taxing Master was clearly wrong and not merely that in his place it would have come to a different decision."

In *Mazarire* v *Taxing Officer & Anor* SC 87/23 at p 6, this Court reiterated that:

> "Where a party is aggrieved by the taxing officer's decision, they are entitled to seek a review. It is settled that not every review warrants interference. The courts have over the years spelt out the principles to be applied when deciding on whether or not to interfere with a taxing officer's ruling…It is worth noting that notwithstanding a party's right to seek recourse in terms of the rules set out above, the position within and without this jurisdiction is fairly settled that the court will not readily interfere with the exercise of the Taxing Officer's discretion unless it is satisfied that the Taxing Officer acted on some wrong principle and or failed to exercise his or her discretion properly."

See also *Zizhou* v *The Taxing Officer & Anor* SC 7/20 at p 7.

APPLICATION OF THE LAW TO THE FACTS

The applicants' counsel submitted that the first respondent erred by failing to find that a total of USD5 000.00 in respect of fees paid to an advocate who had appeared was reasonable. According to the applicants, the advocate's fees were collected by his messenger who duly signed an acknowledgement of receipt. He argued that no reasonable explanation was given for the disallowance of the disbursement. Counsel further submitted that the second and third respondents' chamber application for condonation and extension of time to appeal was struck off the roll with punitive costs therefore the fee of USD5 000 was justified. He also submitted that given the nature of the matter, counsel's experience and expertise in the matter, the fees charged were reasonable. Another aspect alluded to was that considering that hourly rates applied, note 6 of the Law Society USD Tariff 2021, would have qualified the inclusion of a 50% premium in this matter over and above the USD210 hourly rate that counsel would have been permitted to charge.

On the contrary, the second and third respondents' counsel submitted that the applicants failed to provide proof of payment to demonstrate that the advocate's fees were settled. He contended that the pro-forma invoice relied upon by the applicants was repetitive and inconsistent with accepted practice on the work alleged to have been done. According to counsel, the advocate's only attendance was in respect of arguing the matter in the Supreme Court on 27 February 2026. It was thus incorrect to assert that the advocate also attended to the general handling and advising on the matter as narrated in the pro-forma invoice.

Counsel also submitted that the purported acknowledgement of receipt did not bear the advocate's letterhead but rather bore the letterhead of the applicants' legal practitioners. Further, that the relationship between Angeline Mudada, who is cited in the

acknowledgement of receipt as having received the payment on behalf of the advocate, and the advocate was not stated in the said document.

Whilst in their founding affidavit the applicants now alleged that Angeline was a messenger for the advocate, counsel for the applicants conceded that the document was the applicants' law firm's internal document and the relationship between Angeline and the advocate was not disclosed therein.

The respondents' counsel also alluded to the differences in the nature and extent of the work narrated in the pro-forma invoice and the acknowledgment of receipt and for which the USD5000.00 was paid. Counsel submitted that whilst the acknowledgment of receipt refers to the payment of USD 5 000.00 as being for:

> "Appearing at the Supreme Court in the matter of *Longina Rita Makumbe & Ors* v *Kennedy Makumbe & Anor* SC 73/26."

The pro-forma invoice on the other hand states that the payment was for: -

> "Taking instructions, analysis of record and brief, analysis of chamber application and conference with counsel and client and rendering opinion, court preparation and attendances, general handling and advising."

Counsel also submitted that the Law Society prescribes that an advocate is like any other attorney or legal practitioner and must prove an itemized bill of hours and an hourly charge yet this was not done in this claim.

It is apparent that the applicants' grounds for review and submissions are premised on the contention that what was disbursed to the advocate was reasonable by virtue of its payment as reflected on the pro forma invoice and the acknowledgment of receipt documents. In their view, the taxing officer should have allowed the advocate's fee as claimed.

The taxing officer, in her report, alluded to the fact that an advocate's fees are treated as disbursement for which proof of payment is required. When the matter was initially heard, it was postponed to the next day to enable the applicants to produce evidence of payment of the USD5 000.00. On the next day the evidence tendered comprised the pro-forma invoice and an acknowledgement of receipt by the applicants' law firm, which documents the taxing officer held to be inadequate proof that such a sum was paid to the advocate. The taxing officer's report is in sync with the second and third respondents' contention that the hurdle the applicants failed to overcome was proof that a payment of USD5 000.00 had been made to the advocate as per their claim.

It is apparent from the taxing officer's report that she pitched her decision on proof of payment. The central issue as to whether the claim was reasonably incurred and the reasonableness or otherwise of the amount claimed was not considered at all. Whilst the taxing officer may have felt justified with the view that the pro-forma invoice and the acknowledgment of receipt were not good enough proof that the advocate had indeed been paid that sum, that should not have been the end of the enquiry. In the hearing, the applicants' legal practitioner had clarified the relationship between Angeline and the advocate when he stated that she was the advocate's agent. As there was no dispute that the advocate in question had rendered service in SC 73/26 in the Supreme Court and that such service was neither on an *informal pauperis* nor on a *pro amico* basis, there was need to consider whether the service rendered was necessary or proper, whether the cost was reasonably incurred and the reasonableness of the amount for the service found to have been rendered. Though proof of the amount disbursed is important in establishing how much was disbursed, the reasonableness of the disbursement is not proven by the production of a receipt. Questions that must always exercise the taxing officer's mind include: was the disbursement being claimed reasonably incurred? If so, is the amount claimed reasonable considering the service rendered? Proof that

an advocate was paid a certain amount does not, *per se*, mean that the amount so paid is reasonable or met the criteria for payment. The claim must still be subjected to the test of having been reasonably incurred and the amount paid must be shown to be reasonable.

In *Bredenkamp* v *Mashayamombe N O & Anor* 2019 (2) ZLR 174(H), a taxing officer had allowed a disbursement made to an advocate solely because it had been established that the amount had been claimed and paid to the advocate. On review, the court, in setting aside what the taxing officer had allowed and remitting the matter for proper consideration, alluded to the fact that as the purpose of taxation was to conduct an enquiry into the reasonableness of the fees and disbursements that a successful litigant claims from his adversary, it was wrong for the taxing officer to have allowed the item solely because it had been paid without considering whether it was reasonable in the circumstances. The court went on to indicate that the trend whereby counsel's fees from the *de facto* bar are allowed solely because they have been paid should be discouraged. On appeal to this Court in *Mahomed* v *Bredenkamp & Ors*, *(supra*), this Court upheld the High Court's decision and emphasised that the taxing officer is obliged to conduct an enquiry into the reasonableness of the fees and disbursements claimed.

In *ICL Zimbabwe Limited* v *The Taxing Master of the Supreme Court & Anor* *SC* 45/99 at 9 this Court, in alluding to disbursements made to members of the *de facto* bar, stated that:

> "The normal provision is that counsel's fees are allowable in principle, though the amount of those fees may be subject to reduction."

The reduction would generally be in circumstances where, after due enquiry in terms of the law, the taxing officer is of the view that the amount being claimed, whether

already paid out by the claimant or yet to be paid out, is not justifiable or is inflated for the service rendered.

In casu, it is common cause that the advocate in question represented the applicants in the Supreme Court on 27 February 2026 and such representation was for a fee. The only contentious issues related to the extent of that representation and the fees paid. It was incumbent upon the taxing officer to ascertain whether the claim was reasonably incurred and, given the nature and extent of the representation, whether the amount claimed was reasonable or not. As this was an enquiry, and given that service was rendered, counsel could easily have been called upon to justify the reasonableness of the amount claimed if the taxing officer felt that what had been presented was insufficient for a determination of what was a reasonable amount for the service rendered. Unfortunately, this was not done. Instead, the taxing officer simply disallowed the entire sum as if no service, for which payment was due, had been rendered. The taxing officer erred in shying away from determining the real issue of the reasonableness of the sum claimed if such was reasonably incurred. The taxing officer, thus, did not exercise her discretion on the cardinal issue that was before her. It is only appropriate that the decision to disallow this particular item as a whole be set aside and the matter remitted to the taxing officer for determination in terms of the applicable law.

On costs, the applicants' counsel correctly abandoned the prayer for costs.

Resultantly it is ordered that:

1. The application for review of part of the first respondent's decision in terms of Rule 62 (2) of the Supreme Court Rules, 2025 be and is hereby granted.

2. The decision of the first respondent disallowing the claim for Advocate's fees in the sum of USD5000.00 be and is hereby set aside.

3. The case be and is hereby remitted to the first respondent for a consideration of the item relating to the disbursement of USD5000.00 in terms of the law.

3. Each party shall bear their own costs.

Mushangwe & Company, 1st – 5th applicants' legal practitioners.

Scanlen & Holderness, 2nd & 3rd respondents' legal practitioners.